NINJAS STEM FOUNDATION

Board Meeting & Voting Procedures

Meeting Operations & Decision Records | NSF-GV-03

PROPOSED FOR BOARD APPROVAL • Effective Date: _____

Drafting status. A subordinate proposed policy only. It does not replace the filed Certificate of Formation, presently effective bylaws, existing legal rights, or actual Board approvals. References to the October 2026 proposed bylaws describe a contemplated framework, not an adopted rule.

1. Purpose and controlling authority

This procedure standardizes notice, preparation, participation, quorum verification, motions, votes, minutes, and follow-up. It is subordinate to the filed Certificate, legally effective bylaws, and Texas law. The October 2026 proposed seven-day notice, proxy prohibition, two-thirds-of-all-directors amendment rule, and written-consent restrictions are NOT automatically operative before valid adoption.

2. Confirm the lawful Board roster before each meeting

The Secretary shall maintain a separate verified director register identifying appointment/election instrument, term, vacancies, resignation or removal record, and contact for notice. A volunteer, officer, parent, student, program lead, or committee member is not a director merely because that person appeared in a meeting roster or holds “Director” in an officer title.

NSF’s historical materials present unresolved inconsistencies between the filed initial-director list, a three-to-seven range in May bylaws, and a reported eight-person inaugural meeting record. The Board should obtain counsel’s review of the present lawful composition before relying on any contested quorum or vote denominator. This SOP does not determine anyone’s current seat.

3. Calling and noticing meetings

Meetings may be called only by persons with authority under the operative bylaws or law. Under the May 2026 bylaws reviewed, special meetings may be called by the President or any two directors; those bylaws do not themselves provide a general seven-day notice rule for all Board meetings. Texas BOC §22.217 sends regular and special meeting notice questions to the bylaws and supplies waiver rules. Apply the actual operative notice requirements for the meeting.

Under the newer proposed bylaws, if adopted, meeting notices would ordinarily go to all directors at least seven calendar days in advance with the date, time, physical or electronic location and principal agenda matters; proposed amendments, elections, removals and material finance/litigation actions would be expressly identified. Do not present these proposed notice rules as historical law.

The Secretary retains the notice method and date, recipients, attachments, any lawful waiver, and confirmation that remote meeting participation will work. Do not omit a legally entitled director because of disagreement, a records request, litigation, or a disciplinary allegation.

4. Agenda and preparation

A normal agenda: call to order; attendance/quorum; adoption/review of prior minutes; finance report; program/outreach report; old business; specifically noticed decisions; new business within notice scope; assignments; adjournment. Include proposed text, budget, alternatives and decision threshold for a material action. Keep confidential student, personnel, privileged and litigation matters limited to appropriately authorized recipients.

5. Remote participation and decorum

Use Zoom or other legally permitted systems that allow required simultaneous communication and verification of participation. Maintain a fair speaking queue and reasonable equal time. The chair can request that participants stop talking over one another and can use a temporary, proportionate mute for clear interference, restoring the opportunity to participate promptly.

The chair shall not exclude or disconnect a director merely for dissent, criticism, filing a lawful complaint, or raising a procedural objection. For persistent serious disruption, recess and seek an authorized process before any exclusion; reassess quorum. Do not record an involuntarily disconnected director as “voluntarily absent” or “abstained.”

6. Quorum, attendance, and proxies

The Secretary records (1) the legally established director number and relevant bylaws; (2) the actual directors personally participating at the moment of action; (3) the resulting quorum under Texas BOC §22.213 and the operative documents; and (4) any departures, recusal or return affecting participation.

Texas BOC §22.213(b) prohibits counting directors present only by proxy toward quorum. Written director proxy voting is permissible under §22.215 only if the Certificate or bylaws authorize it; a letter allowing a person to read a statement is not itself authorization to cast a director vote. The October proposed bylaws expressly disallow director proxy votes, but that rule must first be adopted.

A specific conflict rule may restrict a director on an item, but statutory rules for interested-director transactions and any stricter adopted NSF policy should be analyzed together. Do not simply lower statutory quorum or a vote threshold after a recusal.

7. Motions and voting

The chair identifies each exact motion and any conflict disclosures. Determine the governing approval threshold before the vote: ordinary Board action under Texas BOC §22.214 generally requires an affirmative majority of those present when quorum exists, absent a greater threshold required by an operative governing document; special matters may differ. For each action record affirmative, negative and abstaining votes, with relevant absences and recusals.

Do not count a non-director family vote, an invalid proxy, or informal assent as a Board vote. A tie does not carry a motion. Never treat a proposed two-thirds rule as automatically deciding the adoption threshold applicable to the very amendment proposing it.

8. Meeting minutes and corrections

Record date, location/platform, convening authority, notice, participants and role/status, quorum basis, conflicts, actual motions, vote counts, decisions, assigned follow-up and adjournment. Minutes summarize business; they are not a substitute for a full litigation narrative or a mechanism for retroactively deciding disputed facts.

Circulate minutes as clearly labeled draft or approved. Permit directors to submit specific factual corrections. An approved correction is dated and traceable; preserve prior versions and contemporaneous evidence. Do not backdate consent or assert “unanimous” unless it occurred.

9. Board actions without a meeting

Texas BOC §22.220 makes non-meeting action dependent on authorization in the Certificate or bylaws and sets formal written-consent requirements. The May bylaws reviewed do not expressly establish the October draft’s unanimous-consent procedure. The proposed bylaws, if adopted, would require unanimous dated written consent in permitted situations and exclude bylaw amendments from such action. Until then, do not infer valid Board action from WhatsApp polls, partial emails or silence.

10. Sensitive matters and litigation

Provide all legally entitled directors with notices and required governance access. Where counsel identifies a material conflict, privilege issue or specific legal restriction, implement only a tailored lawful procedure; pending litigation does not automatically remove a director or suspend lawful inspection rights. Preserve relevant records and consult counsel before substantive votes affecting litigants or disputed historical facts.

11. Adoption, control, and nonretroactivity

These procedures are proposed and should be adopted only under the presently operative process. On adoption identify policy version, effective date, governing bylaw version, administrator and review date. No procedure here validates or invalidates past Board actions, resignations, team withdrawals or records requests.